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Provision of July 17, 2024
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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN today's meeting, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legislation to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing Directive 95/46/EC" (hereinafter
"Code");

HAVING REGARD to Regulation No. 1/2019 concerning
internal procedures of external relevance,
aimed at carrying out the tasks and
exercising the powers delegated to the Guarantor for the
protection of personal data, approved by
resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc. web
No. 9107633 (hereinafter "Guarantor Regulation No.
1/2019");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Guarantor Regulation No.
1/2000 on the organization and functioning of the
office of the Guarantor for the protection of personal data, on www.gpdp.it, doc.
web No. 1098801;

REPORTING by Dr. Agostino Ghiglia;

PREMISED

1. The Complaint

By note dated XX, Ms. XX, through her
lawyer, Attorney XX, complained to this
Authority that she had exercised the rights provided for in
Articles 15 to 22 of the Regulation against
Dr. Roy De Vita (C.F. XX) and had not received

any response.

In particular, the complainant stated that she had exercised the right under Article 15 of the Regulation, as with “communication via certified email from XX (...), through her lawyers, she requested from Dr. De Vita a copy of all photographs taken of her before and after the surgical intervention of rhinoseptoplasty (...); however, Dr. De Vita never responded (...) to such request.”

2. The Investigative Activity

Following this complaint, the Office, by note dated XX (prot. No. XX), sent via certified email, to the professional address of the aforementioned doctor, invited him, as the data controller, to comply - within 20 days of receiving such note - with the requests of the complainant pursuant to Article 15 of Guarantor Regulation No. 1/2019 (doc. web No. 9107633) in a precise and exhaustive manner, requesting, simultaneously, the sending of a copy of such response also to the Authority at the address protocollo@pec.gpdp.it.

After the indicated deadline for the response had passed and it was verified that no follow-up had been provided to the aforementioned invitation, the Office, by note dated XX (prot. No. XX) - sent via certified email to the professional address of the data controller - requested the aforementioned doctor information regarding the reasons for the lack of response to the request made by the complainant and the invitation to comply made by the writing Authority with the aforementioned note dated XX (prot. No. XX), as well as the retention period of the personal data of patients - concerning the photographs that precede and follow the surgical interventions in question - and a copy of the information pursuant to Article 13 of the Regulation to be provided to patients in relation to the processing of personal data.

3. Assessments of the Department on the processing carried out and notification of the violation of Article 166, paragraph 5, of the Code

In light of the fact that no response followed the aforementioned request, and noting such omission through internal checks at the protocol service of the Authority, the Office, by act dated XX (prot. No. XX), notified Dr. Roy De Vita, the data controller, on XX - through the Special Unit for Privacy Protection and Technological Fraud of the Guardia di Finanza - of the initiation of the procedure, pursuant to Article 166, paragraph 5, of the Code, aimed at the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation; this, for the violation of Article 157 of the Code.

This, inviting the data controller to submit defensive writings or documents to the Guarantor, or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, Law No. 689 of November 24, 1981).

At the same time, also through the aforementioned Unit of the Guardia di Finanza, the Office reiterated the request for information of XX (prot. No. XX), notifying it on the same date (with a separate accompanying note dated XX (prot. No. XX)). No response followed this last notification from Dr. De Vita, who did not provide the requested informational elements to the Authority.

The Office has also taken note of the fact that the holder, with reference to the initiation of the procedure, as per Article 166, paragraph 5, of the Code, for the violation of Article 157 of the same Code, did not exercise the right to submit written defenses and/or request to be heard by the Authority, pursuant to Article 166, paragraph 6, of the Code and Article 13 of the internal Regulation of the Guarantor No. 1/2019.

4. Outcome of the investigative activity

In the context of the processing of personal data, data controllers are required to comply with the rules on personal data protection, particularly the Regulation and the Code. It is emphasized, in particular, that the supervisory Authority, within the scope of the tasks and powers conferred by the Regulation, ensures, among other things, the application of the provisions of the aforementioned rules and conducts appropriate investigations, including on the correct application of personal data protection regulations by the data controllers (Article 57, paragraph 1, letters a), f) and h) and Article 58 of the Regulation). For this purpose, the Authority has the power to order the data controller to provide any information necessary for the execution of its tasks (Article 58, paragraph 1, letter a), of the Regulation). Article 157 of the Code provides, for this purpose, that "within the powers of Article 58 of the Regulation, and for the performance of its tasks, the Guarantor may request the data controller, the processor, the representative of the controller or the processor, the data subject, or even third parties to provide information and to exhibit documents also with reference to the content of databases" and that non-compliance with this provision makes the administrative pecuniary sanction provided for in Article 83, paragraph 5 of the Regulation applicable (Article 166, paragraph 2, of the Code).

It is noted, with reference to the matter subject to the complaint, that, also in light of the general principles of good administration, efficiency, effectiveness, and economy of administrative action (Article 97 of the Constitution, as well as Article 9, paragraph 1 and Article 10, paragraph 3, of the internal Regulation of the Guarantor No. 1/2019 of April 4, 2019, web document No. 9107633), the omissive conduct of the holder has involved the repeated intervention of the Authority in the necessity to collect useful elements for the evaluations and decision of the case. Despite the reiteration of the request made by XX carried out by the aforementioned Unit of the Guardia di Finanza and notified on XX (note prot. No. XX of XX) - at the professional office of the data controller (as evidenced by the "Notification Report" of XX present in the case file) - no response has been received from Dr. Roy De Vita.

5. Conclusions.

In light of the evaluations mentioned above, as none of the cases provided for in Article 11 of the Guarantor's Regulation No. 1/2019 apply, it is established that Dr. Roy De Vita - with reference to the matter in question regarding the lack of response to the repeated request for information addressed to the same doctor - has engaged in unlawful omissive conduct in violation of Article 157 (request for information and exhibition of documents) in relation to Article 166, paragraph 2, of the Code.

The violation of this rule, pursuant to Article 166, paragraph 2, of the Code, is subject to the application of the administrative pecuniary sanction pursuant to Article 83, paragraph 5 of the Regulation.

Therefore, the Guarantor, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation, as well as Article 166 of the Code, has the power to "impose an administrative pecuniary sanction

pursuant to Article 83, in addition to [other] corrective measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case" and, in this context, "the Board [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code" (Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019).

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into account the principles of effectiveness, proportionality, and deterrence, as indicated in Article 83, paragraph 1, of the Regulation.

First of all, considering that the violations concerning the matter in question fall within the cases listed in Article 83, paragraph 5, of the Regulation, the total amount of the sanction is to be quantified up to 20,000,000 euros (maximum so-called "static" penalty).

As for the assessment of the severity of the violation (Article 83, paragraph 2, letters a), b) and g) of the Regulation), it is believed that the level of severity is to be considered serious, given the prolonged nature of the violation determined, with reference to the psychological aspect, by the voluntary and intentional omissive conduct of the data controller. Dr. De Vita, in fact, not only did not respond to the invitation to comply made with note of XX (prot. No. XX), but, regarding the violation in question, did not respond to the request for information formulated with note of XX (prot. No. XX) and reiterated with note dated XX (prot. No. XX), notified by the Special Privacy and Technological Fraud Unit of the Guardia di Finanza on XX, in the very hands of the aforementioned doctor (cf. notification report of XX).

In relation to the assessment of the further elements provided for in Article 83, paragraph 2 of the Regulation, such as aggravating and mitigating circumstances, it is taken into account that:

- no measures have been previously adopted against the data controller.

****Regarding relevant violations (art. 83, par. 2, lett. e) of the Regulation);****

- the latter did not cooperate with the Authority (art. 83, par. 2, lett. f) of the Regulation): this omission has necessitated repeated intervention by the Authority to collect useful elements for the evaluations and decision of the case, thereby hindering the proper functioning, efficiency, effectiveness, and economy of administrative action (art. 97 of the Constitution, as well as art. 9, par. 1 and 10, par. 3, of the internal Regulation of the Guarantor no. 1/2019 of April 4, 2019, doc. web no. 9107633).

In light of the aforementioned elements, evaluated as a whole, it is deemed appropriate to determine the amount of the administrative fine provided for by art. 83, par. 5, of the Regulation, in the amount of €4,000.00 (four thousand/00) for the violation referred to in art. 157 of the Code, as an administrative pecuniary sanction deemed, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

It is also considered that the accessory sanction of publication on the Guarantor's website of this provision should be applied, as provided for by art. 166, par. 7, of the Code and art. 16 of the Guarantor's Regulation no. 1/2019, in consideration of the type of violation established that concerned the obligation to respond to requests for information from the Guarantor;

Finally, it is noted that the conditions referred to in art. 17 of Regulation no. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor, are met.

****ALL OF THE ABOVE STATED, THE GUARANTOR****

declares the illegality of the processing of personal data carried out by Dr. Roy De Vita, data controller, for the violation of art. 157 of the Code, in relation to art. 166, par. 2, of the Code as stated in the reasoning;

****ORDERS****

pursuant to arts. 58, par. 2, lett. i) and 83 of the Regulation, as well as art. 166 of the Code, the aforementioned data controller to pay the sum of €4,000.00 (four thousand/00) as an administrative pecuniary sanction for the violation indicated in this provision; it is represented that the offender, pursuant to art. 166, par. 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction;

****COMMANDS****

the aforementioned data controller, in case of failure to settle the dispute pursuant to art. 166, par. 8, of the Code, to pay the sum of €4,000.00 (four thousand/00) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement acts pursuant to art. 27 of Law no. 689/1981;

****DISPOSES****

pursuant to art. 166, par. 7, of the Code, the full publication of this provision on the Guarantor's website and considers that the conditions referred to in art. 17 of Regulation no. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor, are met.

Pursuant to art. 78 of the Regulation, arts. 152 of the Code, and 10 of Legislative Decree no. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, July 17, 2024

****THE PRESIDENT****

Stanzione

****THE REPORTER****

Ghiglia

****THE SECRETARY GENERAL****

Mattei